

FIRST JUDICIAL DISTRICT OF PENNSYLVANIA
COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY
TRIAL DIVISION

General Court Regulation No. 2023-01

Amended Mass Tort Protocols

This Court adopted working rules (“protocols”) on February 15, 2012 (see General Court Regulation No. 2012-01) and amended said protocols on June 18, 2012 (see General Court Regulation No. 2012-03) and February 7, 2013 (see General Court Regulation No. 2013-01) to address concerns related to the mass tort inventory. In the ten-year period since the adoption of General Court Regulation No. 2013-01, there have been dynamic changes in the mass tort program; accordingly, it is prudent to adopt amended protocols reflecting the current state of the mass tort inventory.

ORDER

AND NOW, this 13th day of November 2023, it is hereby ORDERED, ADJUDGED AND DECREED that:

1. Pro hac vice counsel shall be limited to four trials per year, but otherwise will not be limited on pre-trial appearances. The Court encourages non-Pennsylvania counsel to pass its Bar Examination and thereby become familiar with Pennsylvania law, rules, and procedures.
2. All plaintiffs shall be made available for deposition in Philadelphia unless otherwise agreed by all parties or upon motion and for good cause shown.
3. The panel of former judges invited to participate in the special mediation of mass tort cases are the following:

1. Mark I. Bernstein, Retired Judge
Ten Penn Center
1801 Market Street
Suite 1140
Philadelphia, PA 19103
(267) 324-6773
2. Jane Cutler Greenspan, Retired Justice
JAMS Arbitration, Mediation and ADR Services
1717 Arch Street
Suite 4010 – Bell Atlantic Tower
Philadelphia, PA 19103
(215) 246-9494

3. John Herron, Retired Judge
812 Lombard Street, # 26
Philadelphia, PA 19147
(215) 380-3846
4. Richard B. Klein, Retired Judge
McElroy Deutsch
Suite 1500
1 Penn Center
1617 J.F.K. Boulevard
Philadelphia, PA 19103-1815
(215) 519-0521
5. William Manfredi, Retired Judge
1528 Walnut Street – 4th Floor
Philadelphia, PA 19102
(215) 817-9825
6. James R. Melinson, Retired Judge
JAMS Arbitration, Mediation and ADR Services
1717 Arch Street
Suite 4010 – Bell Atlantic Tower
Philadelphia, PA 19103
(215) 246-9494
7. Sandra Mazer Moss, Retired Judge
The Dispute Resolution Institute
Two Logan Square – 6th Floor
18th and Arch Streets
Philadelphia, PA 19103
(215) 656-4374
8. Russell Nigro, Retired Justice
210 W. Washington Square
Philadelphia, PA 19106
(215) 287-5866
9. Lisa M. Rau, Retired Judge
Resonate Mediation & Arbitration
30 S. 15th Street – 15th Floor
Philadelphia, PA 19102
(215) 816-3100
10. Diane M. Welsh, Retired Judge
JAMS Arbitration, Mediation and ADR Services
1717 Arch Street
Suite 4010 – Bell Atlantic Tower
Philadelphia, PA 19103
(215) 246-9494

4. The Mass Tort Team Leader will accept and rule upon petitions for advanced

listings premised upon a medically verifiable prognosis of imminent death.

This General Court Regulation is promulgated in accordance with Rule 239 of the Pennsylvania Rules of Civil Procedure and the April 11, 1986, Order of the Supreme Court of Pennsylvania, Eastern District, No. 55 Judicial Administration. The original General Court Regulation shall be filed with the Office of Judicial Records in a Docket maintained for General Court Regulations issued by the Administrative Judge of the Trial Division, Court of Common Pleas of Philadelphia County, and shall be submitted to the *Pennsylvania Bulletin* for publication. Copies of the General Court Regulation shall be submitted to the Administrative Office of Pennsylvania Courts, the Civil Procedural Rules Committee, American Lawyer Media, The Legal Intelligencer, Jenkins Memorial Law Library, and the Law Library for the First Judicial District of Pennsylvania, and shall be posted on the website of the First Judicial District of Pennsylvania: <http://courts.phila.gov/regs>.

BY THE COURT:

/s/

HONORABLE LISETTE SHIRDAN-HARRIS
Administrative Judge, Trial Division